

Kohler India Standard Terms & Conditions

Background:

Kohler India Corporation Private Limited ("Kohler India" or "Company") is inter alia engaged in the business of manufacturing and trading of sanitary products, ceramic products, plumbing fixtures and fittings of metals, furniture and accessories etc. These Terms and Conditions (the "Terms and Conditions" or "Agreement") apply to the KOHLER website located at www.kohler.co.in, and all associated sites linked to <https://www.kohler.co.in/>. The Site is the property of KOHLER Co. ("KOHLER") and its licensors. BY USING THE SITE, YOU AGREE TO THESE TERMS AND CONDITIONS; IF YOU DO NOT AGREE, DO NOT USE THE SITE.

Note:

1) a) Please print a copy of this Agreement for your records and read the Terms and Conditions and privacy policies of this Agreement before registering your account and/or providing any additional information to the Website. b) By accessing the Website, you consent and acknowledge to have understood and agreed to be bound by the terms and conditions of this Agreement (mentioned hereunder) and Kohler's Code of Conduct. Privacy Policy, Shipping Policy, Refund Policy, Installation Policy, Terms and Conditions of EMI and Grievance Policy shall form part and parcel of these Terms and Conditions. This Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective heirs, successors and assigns. This provision shall survive termination of this Agreement.

2) Use of <https://www.kohler.co.in/> is available only to persons who can form legally binding contracts under the Indian Contract Act, of 1872. Persons who are "incompetent to contract" within the meaning of the Indian Contract Act, 1872 including minors, un-discharged insolvents etc. are not eligible to use <https://www.kohler.co.in/>.

3) Indian law applies to the sales contract, to the exclusion of the United Nations Convention on Contracts for the International Sale of Goods (CISG).

4) By impliedly or expressly accepting these Terms, you also accept and agree to be bound by the Privacy Policy available at Privacy Policy, which may be amended from time to time. Our Privacy Policy outlines how is your information processed amongst other things.

5) The terms and conditions are subject to change by Kohler India at any time, effective upon posting on the <https://www.kohler.co.in/>, and your use of the Service after such posting will constitute acceptance by you of such changes. Such change shall be notified by posting an updated version of the Agreement on this page.

6) This document and the privacy policy is an electronic record in terms of the Information Technology Act, 2000 and rules there under as applicable and the amended provisions pertaining to electronic records in various statutes as amended by the Information Technology Act, 2000. These 'Terms and Conditions' constitute an electronic record within the meaning of the applicable law. This electronic record is generated by a computer system and does not require any physical or digital signatures.

7) As long as you comply with these Terms and Conditions, Kohler India grants you a personal, non-exclusive, non-transferable, limited privilege to enter and use the Site.

You may not use the Site or any Content for any purpose that is unlawful or prohibited by these Terms and Conditions, or to solicit the

performance of any illegal activity or other activity which infringes the rights of Kohler India or others.

1. Applicability:

The terms and conditions narrated below governs the use of the Website and content thereof including all text, graphics, user interfaces, visual interfaces, photographs, trademarks, logos, sounds, music, artwork and computer code (collectively, "Content"), including but not limited to the design, structure, selection, coordination, expression, "look and feel" and arrangement of such Content, apply to the sale of the products by Kohler India through its website <https://www.kohler.co.in/> (herein after referred to as the "the Website") unless omitted and/or superseded by a written instrument duly accepted by Kohler India. The provision of making available the products for sale through the website shall be collectively referred to as "the Services".

By placing an order, the Users/Visitors are offering to purchase Services on and subject to these terms and conditions. Additional terms and conditions may also apply to purchases of goods or services and to specific portions or features of the Site, including contests, promotions or other similar features, all of which terms are made a part of these Terms and Conditions by this reference. You agree to abide by such other terms and conditions, including where applicable representing that you are of sufficient legal age to use or participate in such service or feature. If there is a conflict between these Terms and Conditions and the terms posted for or applicable to a specific portion of the Site or for any service offered on or through the Site, the latter terms shall control with respect to your use of that portion of the Site or the specific service.

2. Your Account

If you use the <https://www.kohler.co.in/>, you are responsible for

maintaining the confidentiality of your account and password and for restricting access to your computer to prevent unauthorised access to your account. You agree to accept responsibility for all activities that occur under your account or password. You should take all necessary steps to ensure that the password is kept confidential and secure and should inform us immediately if you have any reason to believe that your password has become known to anyone else, or if the password is being, or is likely to be, used in an unauthorised manner. Please ensure that the details you provide us with are correct and complete and inform us immediately of any changes to the information that you provided when registering. You can access and update much of the information you provided us with in the Your Account Section of the <https://www.kohler.co.in/>.

You may not use anyone else's password or account at any time without the express permission and consent of the holder of that password or account. Kohler India cannot and will not be liable for any loss or damage arising from your failure to comply with these obligations.

3. Provision of Services:

Kohler India intends to provide the Services across Pan India and currently only serves to selected cities. Kohler India does not intend to provide Services or any part of the Services thereof through its website to any individual/ organisation outside the country of India. The products are provided "as is" and "as available" basis without any representation or warranties, express or implied except otherwise specified in writing.

Kohler India's obligations, if any, with regard to its products and services are governed solely by the agreements pursuant to which they are provided, and nothing on this Site should be construed to alter such agreements.

Kohler India may make changes to any products or services offered

on the Site, or to the applicable prices for any such products or services, at any time, without notice. The materials on the Site with respect to products and services may be out of date, and Kohler India makes no commitment to update the materials on the Site with respect to such products and services.

4. Collection of Information and Reason for such collection:

As a general rule, Kohler India does not collect any personal information unless you choose to provide such information. In order to provide Services effectively, we require certain types of information provided below:

Name, Email id, Contact Number, Billing/Shipping address

We use the information we collect to carry out our contractual commitments towards the Users/Visitors. In addition, we process Personal Data to comply with legal obligations and to help you find the most relevant information for your situation by customizing our Services to optimize your experience and fulfil delivery of such Services. The personal information / data provided to us by you during the course of usage of <https://www.kohler.co.in/> will be treated as strictly confidential and in accordance with the Privacy Policy and applicable laws and regulations. If you object to your information being transferred or used, please do not use the website.

5. Access to <https://www.kohler.co.in/>

We will do our utmost to ensure that the availability of the website will be uninterrupted and that transmissions will be error-free. However, due to the nature of the Internet, this cannot be guaranteed. Also, your access to the website may be occasionally suspended or restricted to allow for repairs, maintenance, or the introduction of new facilities or services at any time without prior notice. We will attempt to limit the frequency and duration of any such suspension or

restriction

6. Communications

When you visit <https://www.kohler.co.in/>, you are communicating with us electronically. You will be required to provide a valid phone number while placing an order with us. We may communicate with you by e-mail, SMS, phone call or by posting notices on the website or by any other mode of communication. For contractual purposes, you consent to receive communications (including transactional, promotional and/or commercial messages), from us concerning your use of the website and/or your order placed on the website.

7. Losses

We will not be responsible for any business loss (including loss of profits, revenue, contracts, anticipated savings, data, goodwill or wasted expenditure) or any other indirect or consequential loss that is not reasonably foreseeable to both you and us when you commenced using the website. When you visit the website and begin using our services, you confirm that you are using this website or availing our services solely for personal purposes and you are not making any commercial or institutional or industrial transactions from <https://www.kohler.co.in/>.

8. Payment Terms:

The final price displayed on the website for each product shall be inclusive of all & taxes and delivery charges. In order to make any payments for the purchase of the products, Kohler India does not collect any part of the payment on its portal. Any and all payments are redirected to and collected at CC Avenue payment gateway portal (payment partner). Upon successful transaction, the payment partner will collect and remit the money to Kohler India and upon

receiving the payment, Kohler India will initiate order processing. Kohler India does not store with itself any sensitive personal information including Debit/Credit Card Number, CVV other details related to payment.

The following types of payment options shall be made available to the Users/Visitors:

i. Net banking, Debit/Credit Cards, UPI, Wallets, EMI including no cost EMI

ii. EMI Option:

EMI Option may be available on selected Services depending on the restriction by Credit/Debit Cards subject to approval by respective Banks.

iii. No Cash on Delivery:

Kohler India for the moment does not provide any Cash on Delivery Services. If and when introduced as a payment process, it may be applicable for selected Services and not necessarily for all Services.

iv. Pricing and Availability:

While we attempt and ensure that all details, descriptions and costs which show up on the Website are precise, mistakes and errors might happen. Assuming we find a blunder in the cost of any Service that you have requested, we will inform you regarding this straightaway and provide you with the choice of reconfirming your order at the right cost or dropping it. On the off chance that we can't reach you, we will regard the request as dropped. Assuming you cancel after having effectively paid for the services, you will get a full refund.

v. Order Processing:

Kohler India shall initiate processing of respective orders upon

successfully receiving the payment for respective orders placed. Delay in Delivery could possibly arise in the event inaccurate details are provided. Kohler India does not assume liability of any manner whatsoever for delay attributable for such reasons. Users/Visitors are advised to provide accurate billing information in order to avoid any delay in delivery. Acceptance of your order and the formation of a contract of sale of the Products between you and us will not take place unless and until you receive a confirmation from us that the Products have been shipped to you from our warehouse.

vi. Order Delivery:

Kohler India shall make every endeavour to deliver the Services within the agreed time frame. The User/Visitor are required to accept the delivery of Services without any objection as long as the Services are delivered without material physical damage. If the delivery is not accepted for any other reasons except the above, Kohler India is entitled to levy cancellation charges as applicable. The mere fact that a delivery period is exceeded does not entitle you to any form of compensation.

vii. Other Payment Terms:

1) While availing any of the payment method/s available on the Platform, we will not be responsible or assume any liability, whatsoever in respect of any loss or damage arising directly or indirectly to You due to:

- a) Lack of authorization for any transaction/s, or
- b) Exceeding the present limit mutually agreed by You and between 'Bank/s', or
- c) Any payment issues arising out of the transaction, or
- d) Decline of transaction for any other reason/s whatsoever

2) All payments made against the purchases/services on the Website by you shall be compulsorily in Indian Rupees acceptable in the Republic of India. The platform will not facilitate transactions to any other form of currency with respect to the purchases made on the Platform.

3) Before shipping / delivering your order to you, Kohler India may request you to provide supporting documents (including but not limited to Govt. issued ID and address proof) to establish the ownership of the payment instrument used by you for your purchase. This is done in the interest of providing a safe online shopping environment to Our Users.

4) You understand, accept and agree that the payment facility provided by Kohler India is neither a banking nor financial service but is merely a facilitator providing an electronic, automated online electronic payment, receiving payment through collection and remittance facility for the Transactions on the Kohler India Platform using the existing authorized banking infrastructure and Credit Card payment gateway networks. Further, by providing a Payment Facility, Kohler India is neither acting as a trustee nor acting in a fiduciary capacity with respect to the Transaction or the Transaction Price.

5) All Valid Credit / Debit/ Cash Card/ and other payment instruments (as freely approved by RBI) are processed using a Credit Card payment gateway or appropriate payment system infrastructure and the same will also be governed by the terms and conditions agreed to between the Buyer and the respective Issuing Bank and payment instrument issuing company. All Online Bank Transfers from Valid Bank Accounts are processed using the gateway provided by the respective Issuing Bank which supports Payment Facility to provide these services to the Users. All such Online Bank Transfers on Payment Facility are also governed by the terms and conditions agreed to between Buyer and the respective Issuing Bank.

6) Payment Facility for Buyers:

i. You, as a Buyer, understand that upon initiating a Transaction, You are entering into a legally binding and enforceable contract with Kohler India to purchase the products and /or services from Kohler India using the Payment Facility, and You shall pay the Transaction Price through Your Issuing Bank to the Kohler India using Payment Facility.

ii. You, as a Buyer, may agree with the Seller (Kohler India) through electronic communication and electronic records and using the automated features as may be provided by the Payment Facility on any extension/increase in the Dispatch and/or Delivery time and the Transaction shall stand amended to such extent. Any such extension/increase of Dispatch / Delivery time or subsequent novation/variation of the Transaction should be in compliance with Payment Facility Rules and Policies.

iii. You, as a Buyer, shall electronically notify the Payment Facility using the appropriate Kohler India Platform features immediately upon Delivery or non-delivery within the time period as provided in the Policies. Non-notification by You of Delivery or non-delivery within the time period specified in the Policies shall be construed as a deemed Delivery in respect of that Transaction.

iv. You may cancel the order before the dispatch of goods by the Seller and the Seller will initiate the refund of the payment made by You to the Seller. You, as a Buyer, shall be entitled, in cases of refusal to deliver the goods or cancellation or order by the Buyer or the Seller, to claim a refund of the Transaction Price (as Your sole and exclusive remedy) as per the Refund Policy of Kohler India. Refund in the case of EMI based transactions or transactions via credit card shall be governed by the agreement between the buyer and the card issuing bank or the EMI facility provider financial institution. Kohler India shall not be liable for any deductions in this case.

v. Refund, if any, shall be made at the same Issuing Bank from where the Transaction Price was received, or through any other method available on the Platform, as chosen by You.

vi. Refunds shall be made in Indian Rupees only and shall be equivalent to the Transaction Price received in Indian Rupees.

vii. For electronic payments, the refund shall be made through a payment facility using NEFT / RTGS or any other online banking / electronic funds transfer system approved by Reserve Bank India (RBI).

viii. Refunds may be supported for select banks. Where a bank is not supported for processing refunds, You will be required to share alternate bank account details with us for processing the refund.

ix. Refund shall be conditional and shall be with recourse available to Kohler India in case of any misuse by Buyer. We may also request you for additional documents for verification.

7) Refund shall be subject to Buyer complying with Policies. Kohler India reserves the right to impose limits on the number of Transactions or Transaction Price which Kohler India may receive from an individual (or any other person) Valid Credit/Debit/ Cash Card / Valid Bank Account/ and such other infrastructure or any other financial instrument directly or indirectly through payment aggregator or through any such facility authorized by Reserve Bank of India to provide enabling support facility for collection and remittance of payment or by an individual Buyer during any time period, and reserves the right to refuse to process Transactions exceeding such limit.

8) Kohler India reserves the right to refuse to process Transactions by Buyers with a prior history of questionable charges including without limitation breach of any agreements by Buyer with Kohler India or breach/violation of any law or any charges imposed by Issuing Bank or breach of any policy or breach of any of these terms and conditions of this Website

9) Kohler India may delay notifying the payment confirmation i.e.

delay Dispatch, if Kohler India deems it suspicious or for Buyers conducting high transaction volumes to ensure safety of the Transaction and Transaction Price. In addition, Kohler India may hold the Transaction Price and Kohler India may not dispatch the goods or remit Transaction Price to law enforcement officials (instead of refunding the same to Buyer) at the request of law enforcement officials or in the event the Buyer is engaged in any form of illegal activity.

10) The Buyer acknowledges that Kohler India will not be liable for any damages, interests or claims etc. resulting from not processing a Transaction/Transaction Price or any delay in processing a Transaction/Transaction Price which is beyond the control of Kohler India.

11) Compliance with Laws:

i. As required by applicable law, if the Customer makes a purchase of an amount equal to or above INR 2 00 000.00, the Customer will be required to upload a scanned copy of his/her PAN card on the Platform, within 4 days of making the purchase, failing which, the purchase made by the Customer will be cancelled. The requirement to submit the PAN card arises only once and if it has been submitted once by the Customer, it need not be submitted again. The order of the Customer shall stand cancelled if there is a discrepancy between the name of the Customer and the name on the PAN Card.

ii. Buyer and Seller shall comply with all the applicable laws (including without limitation Foreign Exchange Management Act, 1999 and the rules made and notifications issued there under and the Exchange Control Manual as may be issued by Reserve Bank of India from time to time, Reserve Bank of India Act, 1934 and its rules and regulations, Payment and Settlement Systems Act 2007, Customs Act, Information and Technology Act, 2000 as amended by the Information Technology (Amendment) Act 2008, The Benami Transactions (Prohibitions) Act , Prevention of Money Laundering Act,

2002, and the rules made there under, Foreign Contribution Regulation Act, 1976 and the rules made there under, Income Tax Act, 1961 and the rules made there under, Export Import Policy of government of India) applicable to them respectively for using Payment Facility and Kohler India Platform.

iii.

iv. The Buyer hereby agrees and confirms that the purchase made from this website is not re-sale electronically (E-commerce) or through brick-and-mortar stores or to any reseller / commercial purpose. The Product / service purchased in violation of this term shall be void of warranty and the Buyer/Visitor account shall be blocked permanently and the Buyer/Visitor shall be debarred from any refund / or return or any other facility committed by this portal to its buyers or visitors via its terms and policies.

9. Customer Care Service and Feedback:

Kohler India continuously strive to update and upgrade its services by taking into account the Users/Visitors feedback. We therefore provide assistance and guidance through its customer care representatives. When communicating with our customer care representatives (whether over the telephone, or via email or letter), you agree to not be abusive, obscene, profane, offensive, sexist, threatening, harassing, racially offensive, or to not otherwise behave inappropriately. Telephone calls between User/Visitor and our customer care representatives may be recorded for quality assurance purposes. By providing any contributions (feedback or message) on this <https://www.kohler.co.in/>, you grant Kohler India and its affiliates and service providers, and each of their and Kohler's respective licensees, Kohler Co & its affiliates, successors and assigns the right to use, reproduce, modify, perform, display, distribute and otherwise disclose to third parties any such content or information.

10. Reviews, comments, communications and other content

Users of this website may post reviews, comments and other content; send communications; and submit suggestions, ideas, comments, questions, or other information, as long as the content does / is not illegal, offensive (including but not limited to material that is sexually explicit content or which promotes racism, bigotry, hatred or physical harm), deceptive, misleading, abusive, indecent, invasive of another's privacy, including bodily privacy, insulting or harassing on the basis of gender, blasphemous, defamatory, libellous, obscene, pornographic, paedophilic or menacing; racially or ethnically objectionable, or disparaging; in breach of copyright, trademark, patent, confidentiality, privacy or any other proprietary information or right; or otherwise injurious to third parties or relates to or promotes money laundering or gambling, or promotes enmity between different groups on the grounds of religion or caste with the intent to incite violence; or is harmful to minors in any way, or impersonates another person; or threatens the unity, integrity, defence, security or sovereignty of India or friendly relations with foreign States or public order or causes incitement to the commission of any cognisable offence or prevents investigation of any offence or is insulting other nation; or objectionable or otherwise unlawful in any manner whatsoever; or which consists of or contains software viruses or any other computer code, file or program designed to interrupt, destroy or limit the functionality of any computer resource, political campaigning, commercial solicitation, chain letters, mass mailings or any spam; or deceive or mislead the addressee about the origin of messages. In the event, a user fails to comply with the above.

<https://www.kohler.co.in/> reserves the right (but not the obligation) to remove, refuse, delete or edit any content that in the sole judgment of <https://www.kohler.co.in/> violates these Conditions of Use and, or terminate your permission to access or use this website.

You represent and warrant that you own or otherwise control all of the rights to the content that you post or that you otherwise provide on or through the website; that, as at the date that the content or material is submitted to [website name]: (i) the content and material is

accurate; (ii) use of the content and material you supply does not breach any applicable <https://www.kohler.co.in/> policies or guidelines and will not cause injury to any person or entity (including that the content or material is not defamatory); (iii) the content is lawful. You agree to indemnify Kohler India Corporation Private Limited, its parent entities and its affiliates for all claims brought by a third party against it or its affiliates arising out of or in connection with a breach of any of these warranties.

11. Code of Conduct:

Kohler Co. strictly requires the Users/Visitors to diligently follow the Code of Conduct including but not limited to the following:

1. The Services provided by Kohler shall not be used to infringe the privacy rights, property rights, or any other rights of any person.
2. The website will not be used to post messages, pictures or recordings or use the Service in any way which violates the privacy or other personal or proprietary rights, or is fraudulent or otherwise unlawful or violates the law;
3. The website will not be to distribute or upload any virus, Trojan horses, or do anything else that might cause harm.
4. The User or Visitor will not take any action that imposes an unreasonable or disproportionately large load on the infrastructure of the Site or Kohler's systems or networks, or any systems or networks connected to the Site or to Kohler CO.
5. The User or Visitor will not use any device, software or routine to interfere or attempt to interfere with the proper working of the Site or any transaction being conducted on the Site, or with any other person's use of the Site.
6. The website will not be used to engage in any activity that

constitutes or facilitates "spamming" or the sending of mass unsolicited messages.

7. Except as expressly provided in these Terms and Conditions, no part of the Site and no Content may be copied, reproduced, republished, uploaded, posted, publicly displayed, encoded, translated, transmitted or distributed in any way (including "mirroring") to any other computer, server, Web site or other medium for publication or distribution or for any commercial enterprise, without Kohler's express prior written consent.

8. The User or Visitor may use information on Kohler products and services (such as data sheets, knowledge base articles, and similar materials) purposely made available by Kohler for downloading from the Site, provided that you (1) not remove any proprietary notice language in all copies of such documents, (2) use such information only for your personal, non-commercial informational purpose and do not copy or post such information on any networked computer or broadcast it in any media, (3) make no modifications to any such information, and (4) not make any additional representations or warranties relating to such documents.

9. The User or Visitor shall not use any "deep-link", "page-scrape", "robot", "spider" or other automatic device, program, algorithm or methodology, or any similar or equivalent manual process, to access, acquire, data mine, copy or monitor any portion of the Site or any Content, or in any way reproduce or circumvent the navigational structure or presentation of the Site or any Content, to obtain or attempt to obtain any materials, documents or information through any means not purposely made available through the Site. Kohler India reserves the right to bar any such activity.

10. The User/Visitor will not use meta tags or code or other devices containing any reference to the Company or the Service (or any trademark, trade name, service mark, logo or slogan of the Company) to direct any person to any other website for any purpose.

11. The User/Visitor shall comply with all applicable laws (and shall not contravene any applicable law) of India relating to the Services, including any regulation made pursuant thereto.

12. The User/Visitor shall not violate, or attempt to violate the security of the Site and/or any web sites linked to the Company by hacking, password "mining" or any other illegitimate means. or gain unauthorized access any information regarded as private by other User(s) or persons, including but without limitation to accessing data and information not intended for them or logging onto a server or account which the User is not authorized to access, attempting to probe, scan or test the vulnerability of a system or network or attempting to breach security or authentication.

13. The User or Visitor shall not reverse look-up, trace or seek to trace any information on any other user of or visitor to the Site, or any other customer of Kohler India, including any account not owned by you, to its source, or exploit the Site or any service or information made available or offered by or through the Site, in any way where the purpose is to reveal any information, including but not limited to personal identification or information, other than your own information, as provided for by the Site.

In the event that the User/Visitor breaches any of the above-mentioned covenants, the Kohler India shall have the absolute right to delete any material relating to the violations. Kohler India reserves the unilateral right to suspend or/and deactivate the User/Visitor's access to the Website in case of violation of Terms and Conditions. In addition to the right to indemnity available, Kohler India shall have the right to recourse to any legal remedy against the User/Visitor to recover the loss whatsoever in nature suffered by Kohler India due to such violation by the User/Visitor.

12. Limitation of Liability:

Kohler India's liability, if any, towards a User/Visitor under this

Agreement shall be limited to the amount payable by User/Visitor towards the Services acquired. Kohler India shall not be liable for any indirect, special or consequential, exemplary, incidental or punitive costs or damages of whatever nature, including but not limited to, lost revenues or profits, downtime costs, loss or damage to data or other intangible losses, arising out of or in any way connected with the use of this Website, and/or the Services and/ or the Agreement or with the delay or inability to use this Website, or for any information, materials and/ or Products uploaded, posted, emailed, transmitted and/ or obtained through this Website, or otherwise arising out of the use of this Website, whether based on contract, tort, negligence, strict liability or otherwise. This provision does not limit either party's liability for: unauthorized use of intellectual property, nor any liability which may not be excluded or limited by applicable law.

13. Indemnity:

The User/Visitor shall at all times fully indemnify and hold harmless Kohler India their officers, directors, shareholders, affiliates, agents, dealers, distributors and employees from any and all costs, losses, claims, demands, damages and liabilities, actions including costs and reasonable attorneys' fees, made by any third party and/or penalty imposed, due to and/or arising out of User/Visitor's breach of the Terms & Conditions and/or User/Visitor's violation of any law, rules or regulations and/or the rights of a third party and/or the infringement by User/Visitor including, without limitation, copyright and trademark infringement, obscene and/or indecent postings, and on-line defamation, and/or any third party using the User/Visitor's account, of any intellectual property and/or other right of any person and/or entity.

14. Intellectual Property:

a) Restrictions. All rights not expressly granted by Kohler India to the User/Visitor in these Terms are hereby reserved by Kohler India There

are no implied rights save to the extent rights cannot be excluded by applicable law. The User/Visitor are prohibited from using, imitating, or copying, in whole or in part, any Kohler India's trademark, service mark, trade dress, logo, or other branding (collectively, "Marks") without, in each instance, Kohler India's prior written consent. All permitted use of Kohler India's Marks will inure to the benefit of Kohler India. Except as expressly provided in these Terms and Conditions, no part of the Site and no Content may be copied, reproduced, republished, uploaded, posted, publicly displayed, encoded, translated, transmitted or distributed in any way (including "mirroring") to any other computer, server, Web site or other medium for publication or distribution or for any commercial enterprise, without Kohler India's express prior written consent.

b) Ownership. As between the parties, the Website and Services, including, without limitation, any and all APIs, Software, documentation, images, video, content, logos, page headers, custom graphics, design and user interface elements, scripts, and other materials contained therein or provided in connection therewith, and all modifications, enhancements, and updates thereto, as well as all IP Rights associated with any of these materials (collectively, "Kohler India IP") are owned by Kohler India and/or its third party sponsors, partners, and suppliers on limited basis only. User/Visitor have no right or license in or to the Kohler India's IP other than the right to access the website, order for the Services, in compliance with these Terms and Conditions.

15. Events beyond our reasonable control

We will not be held responsible for any delay or failure to comply with our obligations under these conditions if the delay or failure arises from any cause which is beyond our reasonable control or due to Force Majeure conditions. This condition does not affect your statutory rights.

16. Waiver

If you breach these conditions and we take no action, we will still be entitled to use our rights and remedies in any other situation where you breach these conditions. Also, if Kohler India does take any legal action against you as a result of your violation of these Terms and Conditions, Kohler India will be entitled to recover from you, and you agree to pay, all reasonable attorneys' fees and costs of such action, in addition to any other relief granted to Kohler India. You agree that Kohler India will not be liable to you or to any third party for termination of your access to the Site as a result of any violation of these Terms and Conditions.

17. Data Security:

We use a number of mechanisms (encryption, passwords, physical security) to protect the security and integrity of your personal information against unauthorized access and disclosure.

Unfortunately, no data transmission over the internet can be guaranteed to be completely secure. So, while we strive to protect such information, we cannot ensure or warrant the security of any information you transmit to us and you do so at your own risk. Once any personal information comes into our possession, we will take reasonable steps to protect that information from misuse and loss and from unauthorised access, modification or disclosure.

18. Purchase-Other terms and conditions

If there is a conflict between these Terms and Conditions and the terms posted for or applicable to a specific portion of the Site or for any service offered on or through the Site, the latter terms shall control with respect to your use of that portion of the Site or the specific service.

19. Links to Other Sites and to the Apple Site

This Site may contain links to other independent third-party Websites ("Linked Sites"). These Linked Sites are provided solely as a convenience to our visitors. Such Linked Sites are not under Kohler India's control, and Kohler India is not responsible for and does not endorse the content of such Linked Sites, including any information or materials contained on such Linked Sites. You will need to make your own independent judgment regarding your interaction with these Linked Sites.

20. Violation of These Terms and Conditions

Kohler India may disclose any information we have about you (including your identity) if we determine that such disclosure is necessary in connection with any investigation or complaint regarding your use of the Site, or to identify, contact or bring legal action against someone who may be causing injury to or interference with (either intentionally or unintentionally) Kohler India's rights or property, or the rights or property of visitors to users of the Site, including Kohler India's customers. Kohler India reserves the right at all times to disclose any information that Kohler India deems necessary to comply with any applicable law, regulation, legal process or governmental request. Kohler India also may disclose your information when Kohler India determines that applicable law requires or permits such disclosure, including exchanging information with other companies and organizations for fraud protection purposes.

You acknowledge and agree that Kohler India may preserve any transmittal or communication by you with Kohler India through the Site or any service offered on or through the Site, and may also disclose such data if required to do so by law or Kohler India determines that such preservation or disclosure is reasonably necessary to (1) comply with legal process, (2) enforce these Terms and Conditions, (3) respond to claims that any such data violates the

rights of others, or (4) protect the rights, property or personal safety of Kohler India, its employees, users of or visitors to the Site, and the public.

You agree that Kohler India may, in its sole discretion and without prior notice, terminate your access to the Site and/or block your future access to the Site if we determine that you have violated these Terms and Conditions or other agreements or guidelines which may be associated with your use of the Site. You also agree that any violation by you of these Terms and Conditions will constitute an unlawful and unfair business practice, and will cause irreparable harm to Kohler India, for which monetary damages would be inadequate, and you consent to Kohler India obtaining any injunctive or equitable relief that Kohler India deems necessary or appropriate in such circumstances. These remedies are in addition to any other remedies Kohler India may have at law or in equity.

You agree that Kohler India may, in its sole discretion and without prior notice, terminate your access to the Site, for cause, which includes (but is not limited to) (1) requests by law enforcement or other government agencies, (2) a request by you (self-initiated account deletions), (3) discontinuance or material modification of the Site or any service offered on or through the Site, or (4) unexpected technical issues or problems.

21. Miscellaneous

If any of the provisions of these Terms and Conditions are held by a court or other tribunal of competent jurisdiction to be void or unenforceable, such provisions shall be limited or eliminated to the minimum extent necessary and replaced with a valid provision that best embodies the intent of these Terms and Conditions, so that these Terms and Conditions shall remain in full force and effect. These Terms and Conditions constitute the entire agreement between you and Kohler India with regard to your use of the Site, and any and all other written or oral agreements or understandings

previously existing between you and Kohler India with respect to such use are hereby superseded and cancelled. Other than as provided in a purchase agreement you enter into with Kohler India, Kohler India will not accept any counter-offers to these Terms and Conditions, and all such offers are hereby categorically rejected. Kohler India's failure to insist on or enforce strict performance of these Terms and Conditions shall not be construed as a waiver by Kohler India of any provision or any right it has to enforce these Terms and Conditions, nor shall any course of conduct between Kohler India and you or any other party be deemed to modify any provision of these Terms and Conditions. These Terms and Conditions shall not be interpreted or construed to confer any rights or remedies on any third parties.

22. Governing Laws, Jurisdiction and Dispute Resolution:

a. In the event of any controversy or dispute between Kohler India and you arising out of or in connection with your use of the Site, the parties shall attempt, promptly and in good faith, to resolve any such dispute. If we are unable to resolve any such dispute within a reasonable time(not to exceed thirty (30) days), then either party may submit such controversy or dispute to mediation. If the dispute cannot be resolved through mediation, then the parties shall be free to pursue any right or remedy available to them under applicable law.

b. This Agreement shall be governed by the laws of India. Any dispute between the Parties arising out of or relating to this Agreement, including with respect to the interpretation of any provision of this Agreement, shall be resolved by arbitration by a single arbitrator appointed by both the Parties mutually. The arbitration proceedings shall be in accordance with the Arbitration and Conciliation Act, 1996 or any enactments in substitution thereof. The venue of the arbitration proceedings shall be at Delhi. The award of the arbitrator shall be final and binding upon the Parties and non-appealable and the Parties agree to be bound by the same and the success of obligation of Kohler India. All legal transactions concluded between Kohler India and a User/Visitor shall be construed in accordance with

the laws of India. You agree, as we do, to submit to the exclusive jurisdiction of the courts at Delhi.

23. REVIEW & Feedback

Any feedback you provide at this site shall be deemed to be non-confidential. Kohler India shall be free to use such information on an unrestricted basis. This policy will be reviewed as and when required and the information contained in this website is subject to change without notice.